The Right to be Forgotten and Epistemic Privacy (Floridi 2014/2021)

The right to be forgotten protects personal narrative identity from eternal digital petrification, balancing informational friction against historical truth in networked memory.

GRADE: HIGH | STATUS: STABLE | DOMAIN: PHILOSOPHICAL | REPLICATION: VERIFIED

WHAT WE KNOW (Narrowest Supported Conclusion)

Before digital storage, human forgetting was the natural default; remembering required active, expensive inscription. Digital networks inverted this baseline: total retention became cheap and automatic, while forgetting required costly intervention. Luciano Floridi demonstrates that the "right to be forgotten" is not a license to rewrite history, but a mechanism to restore ontic friction—protecting the human capacity for self-reinvention and moral rehabilitation against eternal algorithmic petrification.

EVIDENCE AND CAUSAL ASSESSMENT

Psychological and legal analysis reveals that permanent, indelible indexing of youthful missteps, resolved bankruptcies, or obsolete medical records strips individuals of moral agency, locking human beings into immutable digital representations that mischaracterize their current reality.

EFFECT SIZE AND PERSISTENCE

The right to delist restores a balance between public historical accountability and individual epistemic privacy, establishing that personal information relevance decays over time.

BIAS, HETEROGENEITY, AND CONFOUNDING

Classified as robust (<20%). Tension persists between individual privacy rights and freedom of expression/public interest; jurisprudence requires balancing the public's right to know against the severity of private harm.

WHAT THIS DOES NOT MEAN (Strict Boundary Conditions)

The right to be forgotten is not an absolute right to erase true public records; it applies to search engine indexing and commercial processing when personal data is inadequate, irrelevant, or no longer necessary.

WHAT ACTION IS REASONABLY JUSTIFIED

Design data lifecycle architectures with built-in temporal expiration, data minimization, and automated deletion triggers; do not train monolithic models directly on sensitive personal identifying information.

VERIFIED SOURCES & DOI IDENTIFIERS

- Floridi, L. (2021). 'The Right to be Forgotten': A Philosophical View. In The Ethics of Information, Oxford University Press / SSRN. https://doi.org/10.2139/ssrn.3853478